

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                                                 |                                                    |                           |                                                        |                                    |                                 |
|---------------------------------------------------------------------------------|----------------------------------------------------|---------------------------|--------------------------------------------------------|------------------------------------|---------------------------------|
| Investigator:<br>Owen Godshall                                                  | Team:<br>Team # 5                                  | CCRB Case #:<br>201110762 | <input type="checkbox"/> Force                         | <input type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                                                 |                                                    |                           | <input checked="" type="checkbox"/> Abuse              | <input type="checkbox"/> O.L.      | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Sunday, 07/17/2011 3:15 AM, Tuesday,<br>07/19/2011 12:00 AM | Location of Incident:<br>§ 87(2)(b) and § 87(2)(b) | Precinct:<br>44           | 18 Mo. SOL<br>1/17/2013                                | EO SOL<br>1/17/2013                |                                 |
| Date/Time CV Reported<br>Wed, 08/17/2011 11:00 AM                               | CV Reported At:<br>CCRB                            | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Wed, 08/17/2011 11:00 AM |                                    |                                 |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

| Subject Officer(s)      | Shield | TaxID  | Command |
|-------------------------|--------|--------|---------|
| 1. POM Brian Holshek    | 06734  | 944657 | 044 PCT |
| 2. POM John Stoltenborg | 14707  | 945032 | 044 PCT |
| 3. POM Eric Miller      | 06888  | 944812 | 044 PCT |
| 4. POM Lamont Gibson    | 05872  | 944594 | 044 PCT |

| Officer(s)             | Allegation                                                                                                              | Investigator Recommendation |
|------------------------|-------------------------------------------------------------------------------------------------------------------------|-----------------------------|
| A.POM Brian Holshek    | Abuse: PO Brian Holshek stopped the car in which § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants.     | § 87(2)(b)                  |
| B.POM John Stoltenborg | Abuse: PO John Stoltenborg stopped the car in which § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants.  | § 87(2)(b)                  |
| C.POM Lamont Gibson    | Abuse: PO Lamont Gibson stopped the car in which § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants.     | § 87(2)(b)                  |
| D.POM Eric Miller      | Abuse: PO Eric Miller stopped the car in which § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants.                   | § 87(2)(b)                  |
| E.POM Brian Holshek    | Abuse: PO Brian Holshek frisked § 87(2)(b) and § 87(2)(b).                                                              | § 87(2)(b)                  |
| F.POM John Stoltenborg | Abuse: PO John Stoltenborg searched the car in which § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants. | § 87(2)(b)                  |
| G.POM Eric Miller      | Abuse: PO Eric Miller refused to provide his name and/or shield number to § 87(2)(b).                                   | § 87(2)(b)                  |
| § 87(2)(g), § 87(4-b)  | § 87(2)(b)                                                                                                              | § 87(2)(b)                  |
| § 87(2)(b)             | § 87(2)(b)                                                                                                              | § 87(2)(b)                  |
| § 87(2)(b)             | § 87(2)(b)                                                                                                              | § 87(2)(b)                  |

## Case Summary

On August 17, 2011, § 87(2)(b) filed this incident in person with the CCRB (encl. 10A-10B). On August 26, 2011, the CCRB received a letter from § 87(2)(b) detailing the complaint (encl. 10). The complaint was eligible for mediation, but § 87(2)(b) declined.

On July 17, 2011, at approximately 3:15 a.m., § 87(2)(b), § 87(2)(b), § 87(2)(b) and § 87(2)(b) were pulled over by PO John Stoltenborg, PO Brian Holshek, PO Eric Miller and PO Lamont Gibson of the 44<sup>th</sup> Precinct in the vicinity of § 87(2)(b) and § 87(2)(b) in the Bronx. The following allegations resulted:

- **Allegation A-Abuse of Authority:** PO Brian Holshek stopped the car in which § 87(2)(b) #, § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants.
- **Allegation B-Abuse of Authority:** PO John Stoltenborg stopped the car in which § 87(2)(b) § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants.
- **Allegation C-Abuse of Authority:** PO Lamont Gibson stopped the car in which § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants.
- **Allegation D-Abuse of Authority:** PO Eric Miller stopped the car in which § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants.

§ 87(2)(g)

- **Allegation E-Abuse of Authority:** PO Brian Holshek frisked § 87(2)(b) and § 87(2)(b)
- **Allegation F-Abuse of Authority:** PO John Stoltenborg searched the car in which § 87(2)(b) § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants.

§ 87(2)(g)

- **Allegation G-Abuse of Authority:** PO Eric Miller refused to provide his name and/or shield number to § 87(2)(b)

§ 87(2)(g)

- § 87(2)(g), § 87(4-b)

§ 87(2)(g)

## Results of Investigation

### Civilian Statements

#### Complainant/Victim:

- § 87(2)(b) § 87(2)(b) at the time of the incident, is a black male, stands at 5'10," weighs 173 pounds and has brown hair and brown eyes. § 87(2)(b)

#### CCRB Testimony

On August 17, 2011, § 87(2)(b) filed this incident in person with the CCRB (encl. 10A-10B). On August 26, 2011, the CCRB received a letter from § 87(2)(b) detailing the complaint (encl. 11) and on September 8, 2011, § 87(2)(b) was interviewed at the CCRB (encl. 12A-12E). § 87(2)(g)

On July 17, 2011, at approximately 3:15 a.m., § 87(2)(b) was seated in the front passenger's seat inside of his friend § 87(2)(b)'s vehicle, a Nissan Maxima. Also inside of the vehicle were § 87(2)(b) and § 87(2)(b)'s cousin, § 87(2)(b). § 87(2)(b) was driving. The group had just bought food from a McDonald's restaurant on East 145<sup>th</sup> Street and 8<sup>th</sup> Avenue in Manhattan and was on their way to dropping one of the guys off at home. When the group approached East 163<sup>rd</sup> Street and 3<sup>rd</sup> Avenue in the Bronx, an unmarked police vehicle, a dark sedan pulled them over. § 87(2)(b) had not seen the police vehicle, but § 87(2)(b) did, because prior to being pulled over, he said that he saw the officers looking at them.

Three plainclothes officers exited the police vehicle and approached § 87(2)(b)'s vehicle. Two plainclothes white male officers stood by the driver and passenger side (one at each side), while the third officer, a black male with a bald head, stood by the rear of the vehicle. This investigation identified these officers as PO John Stoltenborg, PO Brian Holshek and PO Eric Miller of the 44<sup>th</sup> Precinct, respectively. The officers instructed the group to exit the vehicle. The group complied and stood at the rear of the car. PO Stoltenborg began searching the vehicle, while PO Holshek asked the group what they were up to and where they were headed. All of the males had the bags of food still in their hands as they had been eating in the car. The group answered their questions and the officers joked about them eating McDonalds and it not being good for their health. § 87(2)(b) saw PO Stoltenborg searching the front and back seat of the car. § 87(2)(b) did not see any other officer enter or search the vehicle. An officer, possibly PO Holshek told the group that they were looking for four black males who had fled a shooting in a late model Nissan Maxima. § 87(2)(b) disputed this, stating that they could not have fit the exact description of four other individuals. The officers did not provide any additional details of the shooting or the suspects.

PO Holshek requested § 87(2)(b)'s ID. § 87(2)(b) was not sure if PO Holshek also requested everyone else's ID, but they all provided their IDs to the officers. PO Holshek then frisked § 87(2)(b)'s torso, pants legs, back and front pockets. PO Holshek never entered his pockets. PO Holshek then frisked § 87(2)(b), § 87(2)(b) and § 87(2)(b) in the same manner. Nothing was found on anyone. § 87(2)(b) asked the officers, who were all standing near each other, for their badge numbers and PO Stoltenborg and PO Holshek yelled out their information. PO Miller did not respond. § 87(2)(b) is positive that PO Miller heard his request because he asked a couple of times and PO Miller looked at him, but continued to walk away.

The incident lasted approximately five minutes and no one was arrested or issued a summons.

**Victim:** § 87(2)(b)

- § 87(2)(b) § 87(2)(b) *at the time of the incident, is a black male.*

**CCRB Testimony**

On August 22, 2011, § 87(2)(b) provided a telephone statement (encl.13). § 87(2)(g)

§ 87(2)(b) reported that on July 17, 2011, at approximately 4:00 a.m., he and § 87(2)(b) § 87(2)(b) § 87(2)(b) (identified by the investigation to be § 87(2)(b) and § 87(2)(b) were on their way to drop him off at his home on § 87(2)(b) in the Bronx. § 87(2)(b) was driving a grey Nissan Maxima. An unmarked police vehicle with four plainclothes officers pulled them over on the corner of East 163<sup>rd</sup> Street and 3<sup>rd</sup> Avenue in the Bronx. All of the passengers were instructed to exit the vehicle and hand over their IDs. § 87(2)(b) stood at the rear of the vehicle and all of them complied with providing their information.

§ 87(2)(b) overheard § 87(2)(b) asking the officers why they were pulled over and an officer said that there was a shooting nearby and the number of people in their car matched the description. § 87(2)(b) also heard § 87(2)(b) asked an officer for his shield number and heard the officer say that at the end of the stop, he would provide that information. § 87(2)(b) did not know if the officer provided his shield number to § 87(2)(b). All of the officers were males in plainclothes. § 87(2)(b) did not get a good look at the officers, but recalled that two were white, one was Hispanic and one was a black officer.

**Victim:** § 87(2)(b)

- § 87(2)(b) § 87(2)(b) *at the time of the incident, is a black male.*

**CCRB Testimony**

On September 9, 2011, § 87(2)(b) provided a telephone statement (encl. 14). § 87(2)(g)

On July 17, 2011, at approximately 3:15 a.m., § 87(2)(b) was driving his 2006 dark grey Nissan Maxima along East 163<sup>rd</sup> Street and 3<sup>rd</sup> Avenue in the Bronx, with his friends, § 87(2)(b) § 87(2)(b), § 87(2)(b), and § 87(2)(b). § 87(2)(b) was pulled over by four plainclothes officers, two white males and two black male officers, in an unmarked vehicle. An officer, a white male said that there was a shooting or robbery in the area involving a late model Nissan Maxima. The officers instructed the passengers to exit the vehicle and provide their IDs. They all complied and were escorted to the rear of the vehicle. Two of the officers searched the vehicle, while the other two remained with the passengers. No one was issued a summons or arrested. At some point during the incident, § 87(2)(b) heard § 87(2)(b) asked a white male officer for his badge number, but the officer did not provide it.

**Attempts to Contact Civilians**

§ 87(2)(b) was scheduled for an in-person statement on August 24, 2011. § 87(2)(b) failed to appear and did not call to cancel or reschedule. Between August 22, 2011 and September 14, 2011, five calls and two please letters were sent to § 87(2)(b). None elicited a response. None of the letters were returned to the CCRB via the United States Postal Service.

Between August 2, 2011 and September 9, 2011, the CCRB called § 87(2)(b) five times, sent two please call letters and two emails. § 87(2)(b) did not respond to any of these contact attempts. None of the letters were returned to the CCRB via the United States Postal Service.

Between August 2, 2011 and June 4, 2012, the CCRB called § 87(2)(b) a total of five times and sent him two letters. § 87(2)(b) did not respond to any of these contact attempts. None of the letters were returned to the CCRB via the United States Postal Service.

### **NYPD Statements:**

#### **Subject Officer: PO BRIAN HOLSHEK**

- PO Holshek, § 87(2)(b) old at the time of the incident, is a white male, 6'1" tall, weighs 190 pounds, and has brown eyes and brown hair.
- On July 16, 2011, PO Holshek worked from 9:30 p.m. to 6:05 a.m. on July 17, 2011 with PO John Stoltenborg, PO Eric Miller and PO Lamont Gibson. The officers were assigned to anti-crime within the confines of the 44<sup>th</sup> Precinct. The officers were dressed in plainclothes and in an unmarked vehicle, a black Lincoln. PO Stoltenborg was the operator, PO Holshek was seated in the front passenger's seat and PO Miller and PO Gibson were in the backseat.

#### **Memo Book** (encl.15A-15C):

- At 3:15 a.m., PO Holshek noted that he prepared two UF-250 reports at § 87(2)(b) for criminal possession of a weapon. The males stopped were § 87(2)(b) a black male, DOB: § 87(2)(b), 5'10" tall, brown eyes, and black hair. § 87(2)(b) resides at § 87(2)(b) and § 87(2)(b) DOB: § 87(2)(b), 5'9" tall, 170 pounds, brown hair and brown eyes, and resides at § 87(2)(b) in the Bronx.

#### **Stop, Question, and Frisk (UF-250) Reports**

PO Holshek prepared the UF-250 reports for § 87(2)(b) and § 87(2)(b) (encl. 16A-16B). PO Holshek noted that § 87(2)(b) and § 87(2)(b) were stopped for suspicion of criminal possession of a weapon. § 87(2)(b) and § 87(2)(b) were frisked because they both had a suspicious bulge/hard object in their pockets. The men were further searched because of the hard objects, which turned out to be cell phones. § 87(2)(b)'s demeanor was noted as angry and that he stated "just want to go home." § 87(2)(b) on the other hand, was calm and made no remarks.

#### **CCRB Testimony**

On December 13, 2011, PO Brian Holshek of the 44<sup>th</sup> Precinct was interviewed at the CCRB (encl. 17A-17C). On July 17, 2011, at approximately 3:15 a.m., PO Holshek and his partners were conducting patrol when they observed a vehicle (did not recall description) going at a high rate of speed on § 87(2)(b) and § 87(2)(b) in the Bronx. The car was headed eastbound and the officers decided to pull them over. The officers put on their lights and sirens and the car was pulled over on § 87(2)(b) and § 87(2)(b). All of the officers exited the vehicle and approached the car.

Upon approach, PO Holshek noticed the vehicle had lightly tinted windows. PO Holshek, however, was able to observe some movement in the backseat. PO Holshek explained that the males seated in the backseat were reaching under the seat towards the middle of the car. PO Holshek stood by the passenger's side and believed that PO Stoltenborg was at the driver's side. He did not recall where the other officers were. There were four males inside of the car. PO Holshek did not hear the conversation between PO Stoltenborg and the driver. PO Holshek was not sure if the driver was § 87(2)(b). A photograph of § 87(2)(b) was shown to PO Holshek, but he did not recognize him.

Because of the officer's training and experience with weapons, PO Holshek feared for his safety because of the movement and instructed everyone to exit the vehicle. Upon exiting the vehicle, the males were upset about being stopped. PO Holshek stated that one of the males

accused the officers of stopping them because there were four black males inside of a car. PO Holshek explained to them that they were stopped for speeding and instructed them to get out of the vehicle. PO Holshek did not recall other statements the males made.

At the rear of the vehicle, PO Holshek stood with the passengers and PO Miller and PO Gibson. PO Stoltenborg searched inside of the vehicle for weapons. PO Holshek believed PO Stoltenborg searched the area where they saw the men reaching and was not sure of where else he may have searched. PO Holshek decided to frisk the males for weapons, again because they were moving around in the car. There was no other reason for frisking the males. PO Holshek frisked § 87(2)(b) and § 87(2)(b). PO Holshek frisked their waistbands and pockets for weapons. During the frisk, PO Holshek had some small talk with the men, asking where they were headed and where they were coming from. PO Holshek did not recall a conversation about McDonald's. PO Holshek did not see any food in the car. PO Holshek believes that the other two men were frisked but did not recall witnessing it or which officer conducted it. PO Holshek denied that he or another officer searched the males.

PO Holshek denied that there was any other reason for pulling the vehicle over other than the high rate of speed. When prompted, PO Holshek recalled telling the group that there had been a shooting recently, but he did not recall specifics of the shooting other than it was a drive-by and stated that this area has shootings all the time. PO Holshek requested all of their IDs. § 87(2)(b) and § 87(2)(b) provided their ID to PO Holshek and he did not know if the other two males provided their IDs to the other officers. § 87(2)(b) asked all of the officers for their names and shield numbers. PO Holshek verbally provided his name and shield number to § 87(2)(b) but did not recall if any other officer provided their information. Afterwards, the men were released without being summonsed or arrested.

PO Holshek prepared the UF-250 reports for § 87(2)(b) and § 87(2)(b). He did not know if reports were prepared for the other individuals.

**Subject Officer: PO JOHN STOLTENBORG**

- PO Stoltenborg, § 87(2)(b) old at the time of the incident, is a white male, 6' tall, weighs 165 pounds, and has brown hair and blue eyes.
- On July 16, 2011, PO Stoltenborg worked from 9:30 p.m. to 6:05 a.m. on July 17, 2011 PO Stoltenborg was assigned to anti-crime with PO Holshek. The officers were dressed in plainclothes and assigned an unmarked vehicle, in which PO Stoltenborg was the operator. PO Stoltenborg did not recall working with PO Miller or PO Gibson on the night of the incident.

**Memo Book** (encl. 18A-18B):

- PO Stoltenborg did not have any related entries in his memo book.

**CCRB Testimony**

On January 12, 2012, PO John Stoltenborg of the 44<sup>th</sup> Precinct was interviewed at the CCRB (encl. 19A-19B). § 87(2)(g)

The officers observed a car driving at a high rate of speed on § 87(2)(b) and § 87(2)(b). The officers put on their lights and sirens. The car did not automatically pull over and the officers followed the car until 3<sup>rd</sup> Avenue and East 163<sup>rd</sup> Street. As the officers approached the car, PO Stoltenborg saw movement in the car, specifically the four male occupants bending down and reaching their pockets and around the seats.

Upon reaching the car, PO Stoltenborg stood by the driver's side and PO Holshek stood by the passenger's side. The car windows were rolled down. Either PO Stoltenborg or PO Holshek

instructed the males to place their hands on their laps and they complied. PO Stoltenborg did not recall any discussion with the males. Fearing for their safety, PO Stoltenborg instructed them to exit the vehicle. The males complied and were escorted to the rear of the vehicle. The men were then frisked for weapons by an officer. PO Stoltenborg did not conduct the frisk and did not recall the officer who frisked the males or where on their body they were frisked. PO Stoltenborg later stated that he did witness one of the males being frisked, but could not provide specifics. PO Stoltenborg explained that the males were frisked because they had been reaching down inside of the vehicle.

PO Stoltenborg explained to the group that there was a shooting that week. A young male had been killed outside one of the housing projects and the officers feared gang retaliation. Because of the high rate of speed, the officers suspected the group of possibly being involved. However, PO Stoltenborg stated that no vehicle had been involved in the shooting and did not recall any conversation with the males about their vehicle. The males told the officers that they had heard about the shooting, but were not involved. All of the males were compliant except for one, who was irate. PO Stoltenborg did not recall if the irate male was § 87(2)(b). A photograph of § 87(2)(b) was shown to PO Stoltenborg, but he did not recognize him. The male accused the officers of stopping them for no reason. PO Stoltenborg asked the males why they had been reaching under the seats and they explained that they had just gotten McDonald's food. PO Stoltenborg did not see the food or any of the males eating.

A search of the vehicle was conducted, but PO Stoltenborg denied that he conducted it and did not know who did. PO Stoltenborg explained that he was with the males at the rear of the vehicle at the time. PO Stoltenborg stated that the car was only searched in the reachable areas and where they saw the men reaching. PO Stoltenborg justified the vehicle search because they saw the males reach under the seats. No contraband was found. PO Stoltenborg obtained the driver's ID and believed they all provided their IDs to the officers. PO Stoltenborg did not know if any UF-250 reports were prepared, but he did not prepare any. At one point, one of the males asked PO Holshek for his name and shield number. PO Stoltenborg heard PO Holshek verbally provide his information. PO Stoltenborg did not recall which male was the one who asked for the name and shield number and the request was only targeted at PO Holshek. The officers gave the driver a verbal warning not to speed and resumed patrol.

**Subject Officer: PO LAMONT GIBSON**

- *PO Gibson, § 87(2)(b) old at the time of the incident, is a black male, 6' tall, weighs 210 pounds, and has black hair and brown eyes.*
- *PO Gibson did not recall what hours he worked on July 17, 2011, what his assignment was, or who his partner was. He is currently assigned to PSA 9, to which he transferred in September, 2011.*

**Memo Book** (encl. 20A-20C):

- PO Gibson did not have any related memo book entries.

**CCRB Testimony**

On March 12, 2012, PO Lamont Gibson of the 44<sup>th</sup> Precinct was interviewed at the CCRB (encl. 21A-21B). PO Gibson had no recollection of this incident. Background details and a photograph of § 87(2)(b) were provided to PO Gibson, but did not refresh his memory. PO Gibson did not recall the allegations.

**Subject Officer: PO ERIC MILLER**

- PO Miller, § 87(2)(b) old at the time of the incident, is a black male, 5'8" tall, weighs 170 pounds, and has black hair and brown eyes.
- PO Miller did not recall what hours he worked on July 17, 2011. However, he believes his tour was from 8:00 p.m. on July 16, 2011 to 4:00 a.m. on July 17, 2011. PO Miller was partnered with PO Gibson, PO Stoltenberg, and PO Holshek as anti-crime. The officers were in plainclothes and assigned to an unmarked vehicle. PO Stoltenberg was the operator of the vehicle.

**Memo Book** (encl. 22A-22B):

- PO Miller did not have any related memo book entries.

**CCRB Testimony**

On April 4, 2012, PO Eric Miller of the 44<sup>th</sup> Precinct was interviewed at the CCRB (encl. 23A-23B). PO Miller recalled neither the car stop nor the individuals involved. Background information and a photograph of § 87(2)(b) did not assist in the officer's recollection. PO Miller later stated that he vaguely recalled some of the details, such as that § 87(2)(b) and his friends were intoxicated. § 87(2)(b) and his friends' demeanor seemed to be overly happy making PO Miller believe that they were intoxicated. PO Miller recalls them stating that they were either coming from a party or going to a party. PO Miller did not recall speaking to his partners about why § 87(2)(b)'s car was stopped. PO Miller did not recall if the shooting incident was mentioned to § 87(2)(b) and his friends the time the car was stopped. PO Miller believes that PO Holshek and PO Stoltenberg approached the vehicle. PO Miller did not recall any officer frisking § 87(2)(b) or his friends. PO Miller did not recall § 87(2)(b) asking the officers for their names and shield numbers.

**NYPD Documents**

**MISD Check**

The MISD check (encl. 26A-26I) revealed a hit for § 87(2)(b) and § 87(2)(b) conducted by PO Holshek, tax# 944657 on July 19, 2011. Even though the MISD check listed July 19, 2011 as the date of incident, other police documents and officer testimony confirmed it was July 17, 2011. There were no hits for § 87(2)(b) or § 87(2)(b).

**44<sup>th</sup> Precinct UF-250 logs**

The 44<sup>th</sup> Precinct computerized and handwritten UF-250 logs (encl. 25A-25B) only note the reports prepared for § 87(2)(b) and § 87(2)(b).

**Status of Civil Proceedings**

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of April 18, 2012, more than six months after the 90-day filing deadline passed with regard to the incident (encl. 28).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)





- § 87(2)(b)
- This is the first complaint filed with the CCRB by § 87(2)(b) (encl. 8).
- This is the first complaint filed with the CCRB by § 87(2)(b) (encl. 9).

#### **Subject Officers CCRB History**

- PO Holshek has been a member of the service for four years and there are no substantiated CCRB allegations against him (encl. 2A-2B).
- PO Stoltenborg has been a member of the service for four years and there are no substantiated CCRB allegations against him (encl. 3).
- PO Miller has been a member of the service for four years and there is one substantiated CCRB allegation against him (encl. 5A-5B):
  - In CCRB# 200914335, PO Miller was found to have improperly stopped someone. The NYPD declined to prosecute.
- PO Gibson has been a member of the service for four years and there are two substantiated CCRB allegations against him (encl. 4):
  - In CCRB# 201005227, PO Gibson was found to have improperly questioned and frisked someone. The NYPD issued instructions.

### **Conclusion**

#### **Identification of Subject Officers**

- The MISD check identified PO Holshek as one of the officers who stopped § 87(2)(b) and § 87(2)(b). PO Holshek identified his partners during the incident as PO Stoltenborg, PO Gibson and PO Miller. § 87(2)(g)

#### **Investigative Findings and Recommendations**

**Allegation A-Abuse of Authority: PO Brian Holshek stopped the car in which § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants.**

**Allegation B-Abuse of Authority: PO John Stoltenborg stopped the car in which § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants.**

**Allegation C-Abuse of Authority: PO Lamont Gibson stopped the car in which § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants.**

**Allegation D-Abuse of Authority: PO Eric Miller stopped the car in which § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants.**

It is undisputed that on July 17, 2011, at approximately 3:15 a.m., § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) were stopped by PO Holshek, PO Stoltenborg, PO Gibson and PO Miller. It is also undisputed that the officers discussed a recent shooting with the group while they were stopped. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) denied that they committed any traffic infractions that would cause them to be stopped. PO Holshek and PO Stoltenborg testified that they observed the car traveling at a high rate of speed. They maintained that the only reason the car was pulled over was due to its high rate of speed. PO Holshek stated that he discussed the recent shooting with the vehicle's occupants, but did not link them to the

shooting. He stated that it had been a drive-by shooting. PO Stoltenborg also discussed the shooting with the group. He added that because of the high rate of speed that the group was going, the officers suspected the group of possibly being involved. However, he later stated that no vehicle had been involved in the shooting. Neither PO Gibson nor PO Miller recalled the incident.

In the UF-250 reports for § 87(2)(b) and § 87(2)(b) (encl. 15A-15B), PO Holshek noted that they were stopped for suspicion of criminal possession of a weapon and listed the circumstances leading to the stop was a suspected bulge/object on the person. A search for any related SPRINT reports for the incident date and time did not reveal any hits for any jobs in the vicinity of the stop (encl. 30B-P). The officers did not run the vehicle's license plate, or check the driver's licenses of any of the occupants for open warrants. Additionally, no summons was issued to any of the vehicle's occupants for speeding. The officers provided no explanation for why they did not issue a summons.

Vehicle stops require different levels of justification depending on what type of offense the vehicle in question is involved in. When the vehicle or its occupants are involved in a traffic infraction, an officer only requires probable cause to initiate a stop. People v. Robinson, 97 N.Y.2d 341 (2001) (encl. 1A-1R). When the vehicle or its occupants are believed to be involved in criminal activity, an officer must have a reasonable suspicion before initiating the stop. People v. Ananba, 906 N.Y.S.2d 781 (2009 – Sup Ct Queens Cty) (encl. 1A-X).

§ 87(2)(g)

The UF-250 reports related to the incident do not mention speeding or any other traffic infraction as a justification for the stop. § 87(2)(g)

No summonses were issued, the vehicle's license plate number was not checked, and none of the occupants' names were checked for open warrants. § 87(2)(g)

§ 87(2)(g)

PO Holshek and PO Stoltenborg admitted to discussing the shooting with the occupants during the stop. Both officers stated that they themselves brought the shooting up while making small talk with the occupants. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

**Allegation E-Abuse of Authority: PO Brian Holshek frisked § 87(2)(b) and § 87(2)(b)**

§ 87(2)(b)

**Allegation F-Abuse of Authority: PO John Stoltenborg searched the car in which § 87(2)(b)**

§ 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants.

It is undisputed that the officers stopped § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b). PO Holshek admitted frisking § 87(2)(b) and § 87(2)(b). It is also undisputed that PO Stoltenborg searched the car. While PO Stoltenborg denied that he personally conducted the vehicle search, he did confirm that a search occurred. PO Holshek stated that PO Stoltenborg searched the interior of the vehicle. § 87(2)(g)

§ 87(2)(g)

PO Holshek and PO Stoltenborg testified that they noticed movement in the backseat as they approached the vehicle. PO Holshek described the males reaching under the seat towards the middle of the car, while PO Stoltenborg stated that he saw the four males bending down and going into their pockets. Because of these actions, the officers stated that they feared for their safety and instructed them to exit the vehicle. Once outside, PO Holshek stated that he frisked § 87(2)(b) and § 87(2)(b) because of the movement that they had observed earlier. He believed that the others were also frisked, but did not recall which officer may have conducted it. PO Holshek stated that PO Stoltenborg then searched the vehicle for weapons for the same reason. PO Stoltenborg explained that the car was only searched in the reachable areas where they saw the men reaching.

An officer may frisk a person when he has reasonable suspicion that the person is armed. People v. DeBour, 40 N.Y.2d 210 (1976) (encl. 1Y-1AI). Movement inside a vehicle, however, will not provide reasonable suspicion that a person is armed when there is no accompanying behavior suggesting the presence of a weapon. People v. Chann, 221 A.D.2d 155 (1995) (encl. 1AJ).

§ 87(2)(g)

§ 87(2)(g)

PO Holshek and PO Stoltenborg stated that once the car was stopped, they observed the passengers move around and thus the reason for the frisk and the vehicle search. However in the UF-250 report, PO Holshek noted that § 87(2)(b) and § 87(2)(b) were frisked because they both had a suspicious bulge/hard object in their pockets. Neither PO Holshek nor PO Stoltenborg mentioned observing a bulge in their CCRB interviews. The UF-250 report also note that the men were searched because of the hard objects, however, this was not alleged by § 87(2)(b)

§ 87(2)(g)

§ 87(2)(g)

PO Stoltenborg stated that he observed the vehicle's occupants reaching downwards. § 87(2)(g)

§ 87(2)(g)

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shield number to § 87(2)(b)

§ 87(2)(g)

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